

25PR00043 Matter of The Mills Family Trust

County: santa-barbara

Division: Trust

Department: 4 SM-Cook

Hearing date: 2026-06-15

Motion: Account and Report of Trustee

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Tentative Ruling: Matter of The Mills Family Trust

Case Number

25PR00043

Case Type

Trust

Hearing Date / Time

Mon, 06/15/2026 - 08:30

Nature of Proceedings

Account and Report of Trustee

Tentative Ruling

Probate Notes:

Appearances required.

Patrick Thomas Mills filed a First Account and Report on August 7, 2025. Patrick Thomas Mills filed a First Amended First Account and Report on August 18, 2025. Teresa Rita Prow & Michael Thomas Mills, Jr. filed an "Objection to First Account and Report of Patrick Thomas Mills..." on September 17, 2025.

At the hearing on September 22, 2025, the Court noted the problems with the accounting, the procedural implications of the objection and subsequent amendment, and stated on the record the accounting could not be approved. Continuance was granted to correct the accounting.

Between the September 22, 2025, hearing, and the October 20, 2025, hearing, a Memoranda of Points and Authorities was filed by each party, two Objections to Declarations were filed by Patrick Thomas Mills, and a Second Amended Petition to Approve the First Accounting was filed by Patrick Thomas Mills. At the October 22, 2025, hearing, the Court again noted the inability to approve the accounting, ordered Patrick Thomas Mills to account from the date of the Third Amendment to the trust, and file a new amended accounting containing all the missing documents in the previous accountings. The Court continued the matter to November 17, 2025.

At the November 17, 2025, hearing, the Third Amended Petition to Approve the First Accounting had not been filed. The Court ordered that an estimate of time be ready for the next hearing, which was continued to December 1, 2025. Mr. Martinez filed a status report on November 25, 2025. The status report gives an estimate of December 10, 2025, for the "corrected First Accounting," and an estimate of December 31, 2025, for the "newly ordered accounting."

On January 9, 2026, Patrick Mills filed the Third Amended Petition to Approve the First Accounting. Although no objection is yet on file with the Court, Mr. Mills also filed a Reply to an objection, implying that an objection was received to the accounting. As of June 12, 2026, that objection still has not been filed.

It is recommended the Court consider all objections to the accounting waived pursuant to CRC, Rule 7.801.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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